Responsible Administrator: VP Admin/Finance
Responsible Office: Human Resources
Effective Date: 05/27/2014
Approved by: President
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Drug and Alcohol Abuse Prevention Policy for Employees

Policy Statement

The Drug-Free Schools and Communities Act Amendment of 1989, Public Law 101.226, Sec. 22, Drug-Free Schools and Campuses, requires that, as a condition of receiving funds or any other form of financial assistance under any Federal program, an institution of higher education must certify that it has adopted and implemented a program to prevent the unlawful possession, manufacture, use, or distribution of illicit drugs and alcohol by students and employees. This policy is published and available to all employees in compliance with title 34 of the Code of Federal Regulations Part 86.

Purpose of Policy

Southeastern Louisiana University recognizes that drug and alcohol abuse are major societal problems. Such abuse leads to health problems, decreased productivity, crime and a general weakening of our nation's social fabric. Alcohol and drug abuse are destructive to education by inhibiting educational, social and interpersonal development. It is the purpose of this policy to establish a comprehensive program to address the abuse of alcohol and drugs.

Southeastern's Drug and Alcohol Abuse Prevention Policy strictly prohibits the unlawful possession, manufacture, use or distribution of illicit drugs and alcohol on university property or as a part of any university activity, whether on or off campus. This extends to any other sites that the University operates.

Applicability

This policy applies to all employees and students.

Policy Procedure

The following sanctions may be imposed on employees who violate the policy: suspension from duty and pay; termination of employment; referral to a rehabilitation program; and/or referral for criminal prosecution.

Services provided by the University may include education and intervention training; evaluation and assessment; referral for appropriate treatment; follow-up; and consultation services.

The University may elect to refer the employee off campus to other resources for evaluation, assessment or referral services. Employees are required by federal law to notify the Human Resources Office within five (5) working days of conviction under any criminal drug statute where such conviction occurred in the workplace, while on official business, during work hours, or when on call for duty.

Local, State, and Federal Statutes

Southeastern adheres to all local, state and federal statutes with regard to alcohol and controlled substances. Relevant local and state statutes on alcohol include:

Local Law: Hammond Code Ord. No 936 Sec. 21-91.1; Sec 21-91.2; Sec 21-91.3; Sec 21-91.5 State Laws: LA RS. 14:93.10; LA R.S. 14:93.12; LA RS. 14:93.13 and LA RS 14:98

Relevant state and federal statutes on controlled substances include:

The LA Uniform Controlled Dangerous Substance Law (R.S. 40:961-1001) and Federal Trafficking Penalties

Information on federal sections for drug convictions and health risks associated with alcohol use is available in the Human Resources Office. Employees and students should also refer to the State of Louisiana Substance Abuse and Drug Free Workplace Policy; Southeastern's Drug Free Workplace Policy; and the Drug/Alcohol Testing Policy for more information.

[End of Policy]